

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ROBERT HINES,

Petitioner

VS.

CHERI GATEWOOD JOHNSON,

Respondent

) Case Number: FMS-25-387613

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
AND MOVE AWAY WITH MINOR CHILDREN

TENTATIVE RULING

The parties are ordered to appear in-person or by Zoom at 10AM. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Robert Hines (Father) and Respondent Cheri Gatewood Johnson have three minor children together, Edward (DOB 5/29/13, age 13), Everett (DOB 6/6/2016, age 10), and Elizabeth (DOB 8/1/2018, age 7).
- 2) Pursuant to an 8/24/2022 Divorce Decree from the Circuit Court of Pulaski County, Arkansas—which was registered in this Court on 12/9/2025—the parties “share joint legal custody of the minor children with Mother having primary physical custody. The parties shall discuss all major parenting decisions together; however, in the event they are unable to reach an agreement then Mother shall have the final say.” The Divorce Decree further provides that Father’s parenting time shall be every other Friday after school to Sunday at 5PM (or until Tuesday school drop off

1 if Monday is a school holiday), every Thursday after school to Friday morning drop off, “[a]ll
2 other times by agreement,” and certain holidays.

- 3 3) On for hearing is Father’s request filed 3/27/2026 in which he seeks joint legal custody, “primary
4 physical custody,” and an order allowing him to move to Arkansas with the children. He asserts
5 his actual timeshare has been significantly greater than what is set forth in the Arkansas Divorce
6 Decree. Father has filed a memorandum of points and authorities in which he asserts that the
7 children’s best interests and the LaMusga factors (*In re Marriage of LaMusga* (2004) 32 Cal.4th
8 1072) weigh in favor of relocation for the children.
- 9 4) On 7/2/2026, Mother filed a response, two declarations, and a memorandum of points and
10 authorities in opposition to Father’s request. She states that Father’s assertion of his parenting
11 time is unsupported and that the move would uproot the children who have lived in San Francisco
12 for 5 years and prevent them from being near their mother, stepfather, and their twin 5-month-old
13 siblings. Mother asserts the sibling relationship must be considered and that the LaMusga factors
14 weigh against relocation for the children. Mother states that the Arkansas court previously denied
15 Father’s request for a change in custody and his request to move to Arkansas with the children.
- 16 5) On 7/9/2026, Father filed a reply seeking an order granting his move-away request before the
17 start of the 2026-2027 school year or, in the alternative, a 3-4-4-3 parenting time schedule.
18 Father disagrees that he has less parenting time than Mother. He states that his prior move-away
19 request was not denied on the merits; he attaches a 12/20/2024 Pulaski County Order that shows
20 the Arkansas court transferred the case to California after finding that neither party nor the
21 children had lived in Arkansas for approximately 3.5 years, and ordered that Father may pursue
22 his requests in the California court.

23 **B. Findings and Orders**

- 24 1) This Court has jurisdiction to make child custody orders in this case under the Uniform
25 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party
26 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor
27 children is the United States.
- 28 2) **The parties are ordered to appear at 10AM on 7/16/2026 in Department 404.**
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